

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 16, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV416906	Emilia Arroyo vs Juan Manuel Salas, Jr.	Motion for Leave to File to Amended Complaint On November 6, 2025, Plaintiff Emilia Arroyo filed a motion for leave to file a Second Amended Complaint (“SAC”). The motion is accompanied by a proof of electronic service on that same day to defense counsel. The motion is unopposed. Per Code of Civil Procedure section 1005(b), opposition papers were due on July 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). “Leave to amend is liberally allowed.” (<i>Bettencourt v. Hennessy Industries, Inc.</i> (2012) 205 Cal.App.4th 1103, 1111; Code of Civil Procedure 473). “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court of Los Angeles County</i> (1959) 172 Cal.App.2d 527, 530). Based on the foregoing, the unopposed motion is GRANTED. Plaintiff is to file her SAC within twenty days of this hearing date. The Court will provide the Order.
<u>LINE 2</u>	23CV423546	Owen Buckvar et al vs Bernard Buckvar	Motion to Determine Value OFF CALENDAR. This matter has been assigned for trial with the Honorable Lori Pegg commencing on July 16, 2026. This motion will therefore be heard by Judge Pegg in Department 21.